

24LBCV01509 24LBCV01509

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-07

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1. Background

Facts

Plaintiff, Mooath Saidi filed this action against Defendants, Porsche Cars North America, Inc. ("PCNAI") and Porsche Long Beach for violations of Song-Beverly and related claims. On 7/30/25, Plaintiff signed the settlement agreement proposed by PCNAI. On 8/20/25, with both parties present through their attorneys in the courtroom, the Court dismissed the case in light of the parties' settlement and retained jurisdiction to enforce the settlement per CCP §664.6.

2. Motion

to Enforce Settlement

On 1/23/26, Plaintiff filed this motion to enforce the settlement by entering judgment in Plaintiff's favor. Plaintiff contends Defendant is refusing to respond to his efforts to return his car, and has also made no attempts to make the required payment to him pursuant to the terms of the settlement agreement.

Per CCP §1005(b), opposition to the motion was due nine court days prior to the hearing, which fell on 6/23/24. Defendant filed opposition papers one day late, on 6/24/26. The Court has read and considered the opposition papers, but asks Defense Counsel to ensure timely filing in the future.

Defendant correctly notes in opposition to the motion that it did not sign the agreement attached as Exhibit A to the moving papers. CCP §664.6 permits the Court to enforce a settlement agreement “in a writing signed by the parties.” Plaintiff contends Defendant drafted the settlement agreement, but presents no authority standing for the position that an entity that drafts a settlement agreement is bound by the agreement for purposes of §664.6 even if the entity did not sign the agreement. Notably, Plaintiff addresses this argument in reply, but cites general contract law, not law interpreting §664.6. Again, §664.6, by its very terms, requires the writing to be “signed by the parties.” While Plaintiff may have other enforcement mechanisms, such as an action for breach of contract, the motion under §664.6 cannot be granted unless the writing is “signed by the parties.”

The motion is denied.

Plaintiff is ordered to give notice.